

HOUSE BILL No. 2613

AN ACT concerning the crime victims compensation board; relating to fees chargeable for conducting examinations of persons who may be victims of sexual assault; authorizing the board to establish such fees and adopt rules and regulations for the administration thereof; authorizing the board to use moneys in the crime victims compensation fund for the payment of such fees; relating to confidentiality of records and information given to the crime victims compensation board; providing certain exceptions thereto; amending K.S.A. 2025 Supp. 65-448, 74-7304, 74-7308 and 74-7317 and repealing the existing sections.

Be it enacted by the Legislature of the State of Kansas:

Section 1. K.S.A. 2025 Supp. 65-448 is hereby amended to read as follows: 65-448. (a) Upon the request of any law enforcement officer and with the written consent of the reported victim, or upon the request of the victim, any physician, a licensed physician assistant who has been specially trained in performing sexual assault evidence collection, or a registered professional nurse who has been specially trained in performing sexual assault evidence collection, if such physician, licensed physician assistant or registered nurse is on call or on duty at a:

(1) (A) Medical care facility of this state, as defined by K.S.A. 65-425(h), and amendments thereto, shall examine persons who may be victims of sexual assault; or

(B) child advocacy center of this state, as defined by K.S.A. 38-2227, and amendments thereto, or any other facility licensed or operated by a physician, physician assistant or registered nurse licensed pursuant to chapter 65 of the Kansas Statutes Annotated, and amendments thereto, may examine persons who may be victims of sexual assault.

(2) All examinations performed pursuant to paragraph (1), shall be conducted using Kansas bureau of investigation sexual assault evidence collection kits or similar kits approved by the Kansas bureau of investigation, for the purposes of gathering evidence of any such crime.

(b) If an examination takes place solely upon the request of the victim, the medical care facility, child advocacy center or other facility where the examination takes place shall not notify any law enforcement agency without the written consent of the victim, unless otherwise required by law.

(c) If the physician, licensed physician assistant or registered professional nurse refuses to perform an examination at a medical care facility pursuant to subsection (a)(1), the prosecuting attorney is hereby empowered to seek a mandatory injunction against such physician, licensed physician assistant or registered professional nurse to enforce the provisions of subsection (a)(1). Any refusal by a physician, licensed physician assistant or registered professional nurse to perform an examination ~~which~~ *that* has been requested pursuant to subsection (a)(1) shall be reported by the county or district attorney to the state board of healing arts or the board of nursing, whichever is applicable, for appropriate disciplinary action.

(d) The Kansas bureau of investigation shall establish procedures for gathering evidence pursuant to this section.

(e) (1) The medical care facility, child advocacy center or other facility shall give written notice to the parent or guardian of a minor that such an examination has taken place, except when:

(A) The medical care facility, child advocacy center or other facility has information that a parent, guardian or family or household member is the subject of a related criminal investigation; or

(B) the physician, licensed physician assistant or registered professional nurse, after consultation with law enforcement, reasonably believes that the child will be harmed if such notice is given.

(2) A minor may consent to an examination under this section. Such consent is not subject to disaffirmance because of minority, and consent of a parent or guardian of the minor is not required for such examination.

(f) All unreported sexual assault kits shall be sealed by either the sexual assault nurse examiner program or the facility that provided the

examination and sent to the Kansas bureau of investigation. The Kansas bureau of investigation shall retain all unreported sexual assault kits connected to a report of sexual assault in evidence storage for 20 years. After 20 years, such kits shall be destroyed by the Kansas bureau of investigation.

(g) Each sexual assault kit that is received by the Johnson county sheriff's office criminalistics laboratory, Sedgwick county regional forensic science center or the Kansas bureau of investigation shall be examined if the kit is required to be released to a law enforcement agency in connection with a report of sexual assault.

(h) The fee chargeable for conducting an examination of a victim as ~~herein provided in this section~~ shall be established by the ~~department of health and environment crime victims compensation board established pursuant to K.S.A. 74-7303, and amendments thereto~~. Such fee, including the cost of the sexual assault evidence collection kit, shall be charged to and paid by the ~~county where the alleged offense was committed~~ *crime victims compensation board*, and refusal of the victim to report the alleged offense to law enforcement shall not excuse or exempt the ~~county~~ *crime victims compensation board* from paying such fee. *Payment of such fee is not contingent on a victim or claimant being otherwise eligible for compensation under K.S.A. 74-7301 et seq., and amendments thereto.* The fee for conducting an examination of a victim pursuant to this section shall not be charged or billed to the victim or to the victim's insurance carrier. ~~Such county~~ *The crime victims compensation board* shall be reimbursed such fee upon the costs being paid by the defendant as court costs assessed pursuant to K.S.A. 28-172a, and amendments thereto.

(i) No medical care facility, child advocacy center or other facility shall incur any civil, administrative or criminal liability as a result of notifying or failing to notify any law enforcement agency if an examination has taken place solely upon the request of the victim and such notification is not otherwise required by law.

(j) The Kansas bureau of investigation may adopt rules and regulations as deemed necessary to implement the provisions of this section.

(k) As used in this section:

(1) "Unreported sexual assault kit" means a sexual assault kit collected pursuant to subsection (b) that is not released to law enforcement; and

(2) "sexual assault" means a sexual offense cognizable as a violation of K.S.A. 21-5503, 21-5504, 21-5506 or 21-5604, and amendments thereto.

Sec. 2. K.S.A. 2025 Supp. 74-7304 is hereby amended to read as follows: 74-7304. In addition to the powers and duties specified elsewhere in this act, the board shall have the following powers and duties:

(a) The power to adopt by rule and regulation a description of the organization of the board, stating the general method and course of operation of the board;

(b) (1) The power to adopt rules and regulations:

(A) *Necessary* to carry out the provisions of this act; and the property crime restitution and compensation act, including rules for the allowance of attorney fees for representation of claimants; ~~and to adopt rules and regulations~~

(B) providing for discovery proceedings, including medical examination, consistent with the provisions of this act ~~relating~~ *related* thereto; and

(C) *necessary to carry out the provisions of K.S.A. 65-448, and amendments thereto.*

(2) Rules and regulations adopted by the board shall be statements of general applicability ~~which~~ *that* implement, interpret or prescribe policy; or describe the procedure or practice requirements of the board;

(c) the duty to hear and determine all matters relating to claims for compensation; and the power to reinvestigate or reopen claims without

regard to statutes of limitation or periods of prescription;

(d) the duty, if it would contribute to the function of the board, to subpoena witnesses and other prospective evidence, administer oaths or affirmations, conduct hearings and receive relevant, nonprivileged evidence; and

(e) the power to take notice of judicially recognizable facts and general, technical and scientific facts within their specialized knowledge.

Sec. 3. K.S.A. 2025 Supp. 74-7308 is hereby amended to read as follows: 74-7308. (a) There shall be no privilege, except privileges arising from the attorney-client relationship, as to communications or records relevant to an issue of the physical, mental or emotional conditions of the claimant or victim in a proceeding under this act in which such condition is an element.

(b) If the mental, physical or emotional condition of a victim or claimant is material to a claim, the board may order the victim or claimant to submit to a mental or physical examination by a physician or psychologist, and may order an autopsy of a deceased victim. The order may be made for good cause shown upon notice to the person to be examined and to all persons who have appeared. The order shall specify the time, place, manner, conditions and scope of the examination or autopsy and the person by whom ~~it~~ *the examination or autopsy* is to be made; ~~and the order shall~~ require the person to file with the board a detailed written report of the examination or autopsy. The report shall set out the findings of the person making the report, including results of all tests made, diagnoses, prognosis and other conclusions and reports of earlier examinations of the same conditions.

(c) On request of the person examined, the board shall furnish a copy of the report to such person. If the victim is deceased, the board, on request, shall furnish to the claimant a copy of the report.

(d) The board may require the claimant to supplement the application with any reasonably available medical or psychological reports relating to the injury for which compensation is claimed.

(e) *(1)* All records and information given to the board and the crime victims compensation division created by K.S.A. 75-773, and amendments thereto, to process a claim on behalf of a crime victim shall be confidential. Such exhibits, medical records, psychological records, counseling records, work records, criminal investigation records, criminal court case records, witness statements, telephone records and other records of any type or nature whatsoever gathered for the purpose of evaluating whether to compensate a victim shall not be obtainable by any party to any action, civil or criminal, through any discovery process except:

~~(1)~~*(A)* In the event of an appeal under the Kansas administrative procedure act from a decision of the board and then only to the extent narrowly and necessarily to obtain court review;

~~(2)~~*(B)* *by the board upon a finding that the records and information given to the board were not previously available to an agency investigating or prosecuting child abuse or neglect. Upon such a finding, the board or the board's designee may disclose such records and information necessary to assist in such investigation or prosecution to:*

(i) Any law enforcement agency of this state or any political subdivision of this state;

(ii) any county or district attorney of this state; and

(iii) the Kansas department for children and families;

(C) by the board upon a finding that the records and information given to the board are wholly or partially false or fraudulent. Upon such a finding, the board or the board's designee may disclose such records and information to any law enforcement agency or political subdivision of this state responsible for investigating or prosecuting such false or fraudulent records and information;

(D) upon a strict showing to the court in a separate civil or criminal action that particular information or documents are not

obtainable after diligent effort from any independent source, and are known to exist otherwise only in board records, the court may inspect in camera such records to determine whether the specific requested information exists. If the court determines the specific information sought exists in the board records, the documents may then be released only by court order if the court finds as part of its order that the documents will not pose any threat to the safety of the victim or any other person whose identity may appear in board records; or

~~(3)(E)~~ by any board order granting or denying compensation to a crime victim.

(2) The provisions of paragraphs (1)(B) and (C) shall expire on July 1, 2031, unless the legislature reviews and reenacts such provisions pursuant to K.S.A. 45-229, and amendments thereto.

Sec. 4. K.S.A. 2025 Supp. 74-7317 is hereby amended to read as follows: 74-7317. (a) There is hereby established in the state treasury the crime victims compensation fund.

(b) Moneys in the crime victims compensation fund shall be used only for the payment of compensation pursuant to K.S.A. 74-7301 et seq., and amendments thereto, *the payment of fees pursuant to K.S.A. 65-448, and amendments thereto*, and ~~for~~ the state operations of the board and the crime victims compensation division of the office of the attorney general created pursuant to K.S.A. 75-773, and amendments thereto. Payments from the fund shall be made upon warrants of the director of accounts and reports issued pursuant to vouchers approved by the chairperson of the board and the attorney general or by a person or persons designated by the chairperson and the attorney general.

(c) The crime victims compensation board may apply for, receive and accept money from any source, including financial contributions from inmates as provided by K.S.A. 75-5211(b), and amendments thereto, for the purposes for which money in the crime victims compensation fund may be expended. Upon receipt of any such money, the chairperson of the board shall remit the entire amount to the state treasurer in accordance with the provisions of K.S.A. 75-4215, and amendments thereto. Upon receipt of each such remittance, the state treasurer shall deposit the entire amount in the state treasury to the credit of the crime victims compensation fund.

Sec. 5. K.S.A. 2025 Supp. 65-448, 74-7304, 74-7308 and 74-7317 are hereby repealed.

Sec. 6. This act shall take effect and be in force from and after its publication in the statute book.

I hereby certify that the above BILL originated in the House, and passed that body

HOUSE concurred in
SENATE amendments _____

Speaker of the House.

Chief Clerk of the House.

Passed the SENATE
as amended _____

President of the Senate.

Secretary of the Senate.

APPROVED _____

Governor.